

Declaration of Loay Jweinat

OBJ 1: Paragraph 2, page 2, lines 8-9. **Overruled.**

OBJ 2: Paragraph 3, page 2, lines 12-14. **Overruled.**

OBJ 3: Paragraph 5, page 2, lines 15-16. **Sustained.**

Declaration of Cary S. Reisman

OBJ 1: Paragraph 6, page 2, lines 25-28. **Overruled.**

OBJ 7: Paragraph 13, page 4, lines 14-17. **Overruled.**

OBJ 8: Paragraph 14, page 4, lines 19-24. **Overruled.**

OBJ 9a: Paragraph 15, page 4, lines 25-28. **Overruled.**

OBJ 9b: Paragraph 15, page 4, lines 25-28 and page 5, lines 1-6. **Overruled.**

Declaration of Matthey Kumin

OBJ 1: Paragraph 4, page 2, lines 14-17. **Overruled.**

6. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SEQUOIA EQUITIES, INC.

TENTATIVE RULING:

Before the Court is a demurrer by defendants Sequoia Equities Inc. and Alder Creek Management, Inc. to Plaintiffs' second amended complaint. For the reasons set forth, the Court **CONTINUES** the hearing to **9:00 a.m. on April 27, 2026**. The Court **ADVANCES** the hearing on the demurrer by COIT Financial Group, LLC to the same date and time, as set forth below.

Continuance in Light of Pending COIT Demurrer and Advancement of COIT Demurrer Hearing

The register of actions for this matter reflects, and the current demurrer papers note, that defendant COIT Financial Group, LLC has also filed a demurrer to the second amended complaint ("2AC"). The Court will continue the hearing on the Sequoia/Alder Creek demurrer and advance the hearing on the COIT demurrer so that the pleading challenges can be heard at the same time. The hearing on the COIT demurrer is hereby **RESET and ADVANCED** from **June 8, 2026 to 9:00 a.m. on April 27, 2026**. Counsel for the demurring parties Sequoia/Alder Creek is ordered to serve all parties with written notice of this ruling and of the change in the hearing date on the COIT demurrer **by March 2, 2026**.

Plaintiffs' Notice Objection

The continuance resolves any objection by Plaintiffs concerning the lack of timely service of a notice of hearing on the demurrer, to the extent that objection has not been waived. The notice of hearing with the actual hearing date on the demurrer was served less than 16 court days, plus two court days

for electronic service, prior to the hearing. (Code Civ. Proc. §§ 1005(b) and 1010.6(a)(3)(B).) A notice of motion must include the date and time of the hearing, and the notice period therefore runs from the date a complete notice with the hearing date and time is served, though the defect is waivable. (Code Civ. Proc. § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." (emphasis added)]; *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537 [failure to include notice of date and time of hearing in notice of motion renders the notice fatally defective].) Defective notice is nevertheless waivable. (See *In De Luca v. Board of Supervisors* (1955) 134 Cal.App.2d 606, 609 [appearance despite defective notice]; *Calton v. Quint* (2000) 77 Cal.App.4th 690, 697 [opposition to motion on the merits despite defective notice].) (*Compare to Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267 [opposing party only objected to the defective notice and made no opposition on the merits].)

Additional Meet and Confer Efforts Required

The Court has reviewed Mr. Davidson's declaration in regard to his efforts to meet and confer with opposing counsel Mr. Rupprecht or another attorney in Mr. Rupprecht's office. (Davidson Decl. ¶¶ 9-14 and Exhs. 7-10.) The 2AC was served by electronic mail on counsel for defendants Sequoia and Alder Creek on December 22, 2025, according to the proof of service attached to the pleading. With the additional two court days provided for defendants to respond under Code of Civil Procedure section 1010.6(a)(3)(B), defendants' responsive pleading was due January 23, 2026. It appears that there were scheduling conflicts for counsel for Plaintiffs and counsel for Sequoia and Alder Creek from January 14, 2026 until January 21, 2026 when defendants filed their demurrer.

Based on the continuance of the hearing on the Sequoia/Alder Creek, Plaintiffs and Sequoia/Alder Creek should have time to conduct a good faith meet and confer conference to address and attempt to narrow the issues raised by the demurrer before the continued hearing. (Code Civ. Proc. § 430.41(a).) The Court requests that the parties conduct a meet and confer by telephone, videoconference, or in person **on or before March 16, 2026**, and that counsel for Sequoia/Alder Creek file a supplemental meet and confer declaration **by March 20, 2026**.

7. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: APPOINTMENT OF THE HONORABLE STEVEN K. AUSTIN AS
DISCOVERY REFEREE**

FILED BY: DAVID T. SEENO

TENTATIVE RULING:

Defendants David Seeno and Gold Coast Pipelines, Inc. ("Defendants") filed a Motion for Appointment of the Hon. Steven K. Austin (Ret.) as Discovery Referee on December 18, 2025 (the "Discovery Referee Motion"). The Discovery Referee Motion was initially set for hearing on May 11, 2026. That hearing was later advanced to February 23, 2026. The motion is opposed.

Background

There are a series of lawsuits between the parties and various involved entities. See Declaration of